

****February 7, 2025****

****Video Surveillance – Educational Institution****

The National Authority for the Supervision of Personal Data Processing completed, in January 2025, an investigation at the operator Vasile Conta High School in Târgu Neam¹ and found violations of the provisions of Article 5 paragraph (1) letters a) and c) and Article 32 of the General Data Protection Regulation (GDPR).

As such, the operator was sanctioned with two warnings for the contravention provided by Article 14 paragraph (5) letter a) of Law no. 190/2018 in relation to Article 5 paragraph (1) letters a) and c) of the GDPR and the contravention provided by Article 14 paragraph (2) letter a) of Law no. 190/2018 in relation to Article 32 of the GDPR.

The investigation was initiated following a complaint indicating that this high school processes personal data through a video surveillance system, including audio, with monitors installed in the director's office, who has access (including on his personal phone) to images captured in hallways, stairwells, and in the area of sanitary groups.

During the investigation, it was found that the operator processed personal data (image) through video cameras installed in the rooms designated as sanitary facilities, illegally and excessively, in relation to the purpose for which the data was collected, thus violating the provisions of Article 5 paragraph (1) letters a) and c) of the GDPR.

It was also found that Vasile Conta High School in Târgu Neam¹ did not implement adequate technical and organizational measures to ensure the confidentiality of the data, including for limited and secure access to images and for allocating viewing monitors exclusively to authorized persons, thereby violating the provisions of Article 32 of the GDPR.

At the same time, the following corrective measures were imposed on the operator:

- Review of internal procedures for adopting technical and organizational measures, in the sense that personal data processed through the video surveillance system should be processed in accordance with the processing principles provided in Article 5 of the GDPR;
- Review of internal procedures for adopting technical and organizational measures, including by ensuring limited and secure access to processed images and allocating real-time image viewing monitors exclusively to authorized persons.

In this context, we mention that Article 66 paragraph (4) of Law no. 198/2023 on pre-university education provides that "Audio-video surveillance systems may be installed in school spaces as follows: in classrooms, outside buildings, in hallways, in event rooms, in dormitory hallways, as well as in gymnasiums, except for changing rooms and sanitary groups."

Regarding the sanctioning regime applicable to public authorities in Romania, we specify that it is regulated by Law no. 190/2018, which provides that public authorities are first sanctioned with a warning to which a remediation plan is attached (Article 13 of Law no. 190/2018).

Subsequently, in the event that the respective public institutions do not fully implement the measures provided in the remediation plan, the National Supervisory Authority, depending on the circumstances of each case, may apply the contraventional sanction of a fine ranging from 10,000 lei to 200,000 lei (Article 14 of Law no. 190/2018).

****Legal and Communication Directorate****

****N.A.S.P.D.C.P.****